



Rule 2.86—Form 2: Application to Expunge Misdemeanor Court Records under Iowa Code section 901C.3

Note: This form is for expunging **misdemeanor convictions**. Rule 2.86—Form 1 is used to expunge criminal case records where the defendant was acquitted or the charges were dismissed. **Obtaining the advice of counsel is recommended.** Each individual is only allowed one Iowa Code section 901C.3 expungement in the individual's lifetime. If you have multiple misdemeanor convictions, choosing which to expunge may be a difficult strategic decision.

In the Iowa District Court for Johnson **County**

County where you are filing this Application

State of Iowa or _____

vs.

Alexandra Catherine Montgomery-Example
Defendant

Case no(s). _____

EXAMPLE-901C3-BOUNDARY

**Application to Expunge Misdemeanor
Court Records under Iowa Code section
901C.3**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the misdemeanor court records in the above-captioned case (or cases) pursuant to Iowa Code section 901C.3. In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. Defendant's personal information:

Current legal name:

Alexandra

Full first name

Catherine

*Full middle name
(write "N/A" if none)*

Montgomery-Example

Full last name

All other names ever used (including any other previous legal names and nicknames):

Alex

Full first name

N/A

*Full middle name
(write "N/A" if none)*

Example

Full last name

☐ *Check this box if you have attached a sheet with additional alternate names.*

Personal identifying information:

04 - 12 - 1988

*Date of birth
(month/day/year)*

EXAMPLE0001

Driver's license number

000 - 12 - 0001

Social Security number



2. ☒ Defendant has not been granted a prior Iowa Code section 901C.3 expungement.
3. ☐ This expungement application involves related cases, and Defendant seeks the expungement of the misdemeanor court records in all of following cases that arise out of the same transaction or occurrence: *See Iowa Code § 901C.3(3).*
- _____
- _____
- _____

☐ Check this box if you have attached a sheet with additional information.

NOTE: You must file this application **separately in each of these cases.**

4. ☐ The misdemeanor criminal convictions covered by this application are eligible for expungement. **NOTE:** *Convictions under Iowa Code sections 123.46, 123.47(3) (or similar local ordinance), 235B.20, 321.218, 321A.32, 321J.21, 321J.2, 707.5, 708.2(3), 708.2A, 708.7, 708.11, 708.12, 716.8(3) and (4), 721.2, 721.10, 723.1; chapters 717C, 719, 720, 721.2, 724, 726, 728, and 901A; and a sex offense as defined in section 692A.101 are **ineligible**.*
5. ☒ All court costs, fees, fines, restitution, and any other financial obligations ordered by the court or assessed by the clerk of district court in relation to the misdemeanor convictions covered by this application have been paid in full.
6. ☒ More than eight years have passed since the date of the misdemeanor convictions identified in section 3.
7. ☒ Defendant has no pending criminal charges. **NOTE:** *For purposes of this question, a “criminal” charge means any public offense as defined in Iowa Code section 692.1.*
8. ☐ Defendant has not previously been granted more than one deferred judgment. *All charges as to which a deferred judgment was granted at the same time are considered one deferred judgment.*
9. ☐ Defendant has attached an official Division of Criminal Investigation Iowa criminal history records check dated within the past 30 days of the filing of this application. *Defendants must obtain their criminal history by submitting form DCI-77 with a release authorization signature. Additional information regarding obtaining the records check can be found at: <https://dps.iowa.gov/divisions-iowa-department-public-safety/iowa-division-criminal-investigation/criminal-history-record-check-information>.*

Read Before Signing

Please check each statement below after you have read it.

- ☒ I understand that I must provide a copy of this application to the county attorney.
- ☒ I understand that if I file this application to expunge multiple cases, all cases must be related to the same transaction or occurrence.
- ☒ I understand that Iowa Code section 901C.3 only permits me one misdemeanor expungement in my lifetime.
- ☒ I understand that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7, but the clerk of district court may make the records available upon court order.

**Signature**

Check one

A. ☐ Defendant is self-represented.If you check **A**, you must fill in the following information:I, Alexandra Catherine Montgomery-Example, have read this Application, and I certify*Print your full name: first, middle, last*

under penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
*Month Day Year Self-represented defendant's signature**9999 Example Heritage Boulevard, Apartment 1234*Mailing address*University Heights, IA 52246-1234
City State ZIP code(319) 555-0199 alexandra.montgomery.example@example.org
Phone number Email address

*This form may be signed either by using a digitized signature, see instructions at <https://www.iowacourts.gov/for-the-public/court-forms/>, or by printing and hand-signing.

B. ☐ Defendant's attorney is filing this Application on behalf of Defendant after discussing the contents of this Application with Defendant.If you check **B**, you must fill in the following information:_____, 20____
*Month Day Year Attorney's signature*_____
Name of law firm, if applicable_____
Mailing address_____, _____
City State ZIP code(_____) _____
*Phone number*_____ _____
Email address Additional email address, if applicable**Certification of Service by Mailing or Delivery**

If you cannot find your case on the Iowa Judicial Branch eFile System, proceed with filing your application in paper at the county clerk of court office. You must fill out the below and mail or hand deliver a copy of this application to the county attorney of the county in which you are filing this application.

I, _____, certify that on _____, 20____,
Print your full name: first, middle, last Month Day Year

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it_____, _____, _____
Mailing address City State ZIP code